

Supplementary Notes

Important aspects of Governance, Transparency & Accountability, E-Governance – applications, models, successes, limitations & potential; Citizens Charters; Transparency & Accountability & institutional & other measures

Transparency & Accountability & institutional & other measures✓ **The Digital Personal Data Protection Act, 2023**

- ✓ The Digital Personal Data Protection Act, 2023 (DPDP Act) is a significant legislative framework enacted in India to regulate the processing of digital personal data.
- ✓ It aims to protect individuals' privacy rights while also addressing the needs of businesses and the government in handling personal data.

✓ **Objectives of the Act**

- **Privacy Rights:** It emphasizes safeguarding the privacy of individuals, aligning with the fundamental right to privacy recognized by the Supreme Court of India.
- **Data Protection:** The DPDP Act seeks to protect the personal data of individuals in a digital form by regulating its collection, storage, and processing.
- **Accountability:** The Act aims to establish accountability among data fiduciaries (entities that collect and process data) and processors in handling personal data.

✓ **Provisions of the Act**

- **Application of the Act:** The Act applies to the processing of digital personal data within India and any data processing activities related to offering goods or services to individuals in India, even if the processing takes place outside the country subject to certain exceptions.
- **Rights of Data Principals (Individuals)**
 - ❖ Right to Access, Right to Correction, Right to Erasure, Right to Data Portability & Right to Grievance Redressal.
- **Obligations of Data Fiduciaries**
 - ❖ Lawful Processing, Purpose Limitation, Data Minimization & Data Security.
- **Consent Management**
 - ❖ **Informed Consent:** Data fiduciaries must obtain informed consent from individuals before processing their personal data. Consent must be freely given, specific, and withdrawable.
 - ❖ **Children's Data:** Special provisions apply to processing personal data of children (under 18 years), requiring parental consent and enhanced protection measures.
- **Data Protection Board**
 - ❖ The Act provides for the establishment of the Data Protection Board of India, which will oversee compliance, address grievances, and impose penalties for

violations. The Board will have the authority to conduct inquiries, issue directions, and enforce compliance with the Act.

- **Data Protection Officer (DPO)**
 - ❖ Large data fiduciaries or those processing sensitive data may be required to appoint a Data Protection Officer to ensure compliance with the Act.
- **Cross-Border Data Transfers**
 - ❖ The DPDP Act permits the transfer of personal data outside India, subject to conditions specified by the central government. Adequate safeguards must be in place to ensure data protection in foreign jurisdictions.
- **Penalties and Enforcement**
 - ❖ The Act imposes significant monetary penalties for non-compliance. In severe cases, the Act provides for criminal penalties, including imprisonment, for certain offenses.

✓ **What are the implications of the act?**

- **For Data Principals (Individuals) - Enhanced Rights & privacy protection:** Individuals will have greater control over their personal data, with the ability to access, correct, and delete their data. The Act strengthens the protection of individual privacy in the digital age, offering remedies for misuse or unauthorized processing of personal data.
- **For Businesses (Data Fiduciaries) - Compliance Burden:** Companies must adapt their data processing practices complying with the new regulations, including revising consent mechanisms, updating privacy policies, and implementing data protection measures.
- **For the Government (Regulator) -** The government will have a comprehensive legal framework to regulate digital data processing and enforce compliance. The Act supports the government's objective of maintaining data sovereignty by regulating cross-border data flows and ensuring that data processing aligns with national interests.

✓ **Concerns & criticism of the Act**

- **Government Exemptions and Surveillance Concerns:** The DPDP Act allows the central government to exempt certain government agencies from its provisions. Critics argue that this could lead to unchecked surveillance and misuse of personal data by government bodies, undermining the Act's privacy protections.
- **Ambiguities and Broad Discretion:** Several provisions of the Act are seen as vague or broadly defined, leading to potential ambiguities in interpretation. For example, terms like "**public interest**" and "**national security**" are not clearly defined, giving the government broad discretion to exempt itself or other entities from compliance. The Act grants **extensive rule-making powers to the central government**, leading to concerns that the detailed regulations will be developed without adequate checks and balances or public consultation.

- **Data Localization and Cross-Border Data Flow:** While the Act does not explicitly mandate data localization, it gives the government the power to restrict cross-border data transfers to certain countries or regions. Critics argue that this could create uncertainty for businesses, increase compliance costs, and potentially impact India's digital economy and international trade relations. Multinational companies may face challenges in managing data flows across borders, affecting their operations, and leading to potential conflicts with other data protection regimes.
- **Lack of Independence for the Data Protection Board:** The Data Protection Board, established under the Act to oversee compliance and address grievances, is seen as lacking sufficient independence from the government. Critics argue that the Board's composition and appointment process could lead to government influence, undermining its effectiveness and impartiality.
- **Rights and Redressal Mechanisms:** The Act provides for grievance redressal mechanisms, but some critics argue that the **process is complex** and may be difficult for ordinary citizens to navigate. This could limit individuals' ability to effectively exercise their rights and seek remedies for data breaches or misuse.
- **Compliance Burden on Businesses:** The DPDP Act imposes significant **compliance obligations on businesses**, particularly small and medium enterprises (SMEs).
- **Impact on Innovation and Start-ups:** The stringent compliance requirements and potential restrictions on cross-border data flows could stifle innovation, particularly for start-ups and tech companies that rely on data-driven business models.
- **Absence of a Data Minimization Mandate:** Critics have noted that the Act lacks a strong emphasis on data minimization, which is a principle in many global data protection laws. Without stringent data minimization requirements, data fiduciaries might collect more data than necessary, increasing the risk of data misuse and breaches.

✓ **Way Forward**

- While the Digital Personal Data Protection Act, 2023, represents a significant step forward in establishing a legal framework for data protection in India, the criticisms highlight several areas of concern.
- These include potential government overreach, ambiguities in the law, challenges for businesses, and questions about the independence and effectiveness of enforcement mechanisms.
- Addressing these concerns through clear regulations, judicial oversight, and balanced enforcement will be crucial for the Act's success in protecting individuals' privacy rights while fostering a thriving digital economy.

➤ **Sports Governance in India**

- ✓ Sports governance in India involves the management, regulation, and oversight of sports activities and organizations.
- ✓ It is a complex and multi-layered system that includes various stakeholders such as government bodies, sports federations, clubs, athletes, and private entities.

✓ Stakeholders in Sports Governance

- **Government Bodies**

- a) Ministry of Youth Affairs and Sports (MYAS) - The central government ministry responsible for formulating policies, providing funding, and overseeing sports development in India.

- b) Sports Authority of India (SAI) - SAI is the apex national sports body established in 1984 to develop and promote sports in India. It is responsible for maintaining sports infrastructure, training athletes, and implementing government policies.

- **National Sports Federations (NSFs)** - NSFs are autonomous bodies that govern specific sports disciplines in India, such as the Board of Control for Cricket in India (BCCI), All India Football Federation (AIFF), and Hockey India.

- **Indian Olympic Association (IOA)** - The IOA is the apex body responsible for representing India in the Olympic Games, Asian Games, Commonwealth Games, and other multi-sport events. It coordinates with NSFs and the government to prepare athletes for these competitions.

- **State Sports Associations** - These are regional bodies that operate under the guidance of NSFs to manage sports at the state level. They organize state championships and promote grassroots development.

- **Private Sector and Corporates** - The private sector, including corporate sponsorships, plays a significant role in sports governance by providing financial support, organizing leagues, and promoting sports through media and marketing.

- **Athletes and Coaches** - Athletes and coaches are the central figures in the sports ecosystem, with their performance and development being the primary focus of governance efforts.

✓ **Important Policy Initiatives**

- **National Sports Policy:** The National Sports Policy lays down the framework for sports development in India, focusing on broadening the base of sports participation, talent identification, and excellence at the international level.

- **Khelo India Programme:** Launched in 2018, Khelo India aims to develop a sports culture in India by promoting grassroots participation, providing scholarships, and improving sports infrastructure across the country.

- **Target Olympic Podium Scheme (TOPS):** TOPS focuses on identifying and supporting elite athletes who have the potential to win medals at the Olympics and other international events.

✓ **Issues & Challenges in Sports Governance.**

- **Administrative Issues:** Many NSFs and sports bodies are criticized for lack of professionalism, transparency, and accountability. Governance often suffers from inefficiencies, nepotism, and politicization.

- **Infrastructure Gaps:** Despite recent improvements, India still faces significant challenges in providing adequate sports infrastructure, especially at the grassroots level.
- **Talent Identification and Development:** Identifying and nurturing talent from a young age remains a challenge due to the lack of structured scouting networks and grassroots programs.
- **Funding and Sponsorship:** Many sports federations rely heavily on government funding, leading to financial constraints and limited resources for sports development.
- **Lack of Support Systems for Athletes:** Many athletes face challenges related to financial stability, post-retirement planning, and psychological support. The welfare of athletes, particularly those in less popular sports, is often neglected.

✓ **Recent Developments & reforms**

- **Draft National Sports Development Code:** The draft code aims to bring more transparency, accountability, and good governance practices in sports bodies. It includes provisions for tenure restrictions, age limits for office-bearers, and mandatory disclosures.
- **Promotion of Women's Sports:** There has been a growing focus on promoting women's sports in India, with programs aimed at increasing participation, improving infrastructure, and supporting female athletes.
- **Professional Leagues:** The rise of professional leagues like the Indian Premier League (IPL), Indian Super League (ISL), and Pro Kabaddi League has revolutionized sports in India, bringing in more investments, better management practices, and increased fan engagement.

✓ **Way Forward**

- **Strengthening Governance Structures**
 - a) **Professionalization:** There is a need to professionalize sports administration by introducing better management practices, transparency, and accountability.
 - b) **Capacity Building:** Investing in capacity building for sports administrators and officials is crucial for improving governance standards.
- **Enhanced Funding and Investment:**
 - a) **Public-Private Partnerships:** Encouraging public-private partnerships (PPPs) can help bridge the funding gap and improve infrastructure and training facilities.
 - b) **Increased Sponsorship:** Diversifying sponsorship and investment beyond cricket to other sports can ensure balanced development across disciplines.
- **Focus on Grassroots Development:**
 - a) **Talent Development:** Building a robust grassroots ecosystem with a focus on talent identification, coaching, and support systems is essential for long-term success in sports.

- **Effective Grievance Redressal Mechanisms**